



Notification Waiver Determination

CRH - Arcosa

Acquisition	Neon Merger Sub, Inc. (Merger Sub), a wholly owned subsidiary of CRH Americas, Inc. (CRH Americas), applied for a notification waiver in respect of its proposed acquisition of 100% of the shares in Arcosa, Inc. (Arcosa), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 August 2026

Parties to the Acquisition	The acquirer, Merger Sub, is a wholly owned subsidiary of CRH Americas. CRH Americas primarily acts as a holding company that does not itself directly manufacture or supply any goods or services. CRH Americas is owned by CRH plc (CRH, together with its direct and indirect subsidiaries, CRH Group), a global supplier of building materials and infrastructure products headquartered in Ireland and listed on the New York Stock Exchange (NYSE). CRH has various interests in Australia, including controlling interests in CTC Precast Pty Ltd (Civilmart), Infrastructure Products Australia Pty Ltd (IPA) and Adbri Pty Ltd (Adbri). Each of Civilmart and IPA primarily supply precast concrete products that are used in a range of industries including infrastructure, telecommunications, water drainage, treatment and purification. Adbri is a national manufacturer and supplier of cement, ready-mix concrete and aggregate products. Arcosa is headquartered in Dallas, Texas and is listed on the NYSE. Arcosa is a provider of infrastructure-related materials, products and solutions, predominantly in the United States, including: • construction products, such as aggregates, specialty materials e.g. gypsum, hot-mix asphalt and construction site support; and • engineered products, such as utility structures, poles, wind towers, telecom structures, traffic and lighting structures. Arcosa has no subsidiaries, offices or employees in Australia, and supplies a very small volume of trenching and shoring products in Australia from its business in the United States.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is no horizontal overlap or vertical relationship between CRH (including its connected entities) and Arcosa's activities in the supply of trenching and shoring products in Australia - there are alternative suppliers of trenching and shoring products in Australia - Arcosa has a small presence in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act